

because no reply was filed. If counsel for Defendant does not appear today the Court will reduce the attorney hours by an additional hour. Sanctions of \$1,860.00 are awarded (reduced to \$1,460 *only if* Defense counsel does not appear at today's hearing, because the estimated attorney time includes appearance today).

The Motion to Compel Further Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,860.00. Defendant's proposed order will be modified and executed.

CONE VS. MJB WELDING SUPPLY, INC

CASE NUMBER: 25CV-0208678

Tentative Ruling on Motion to Dismiss Entire PAGA Action: Plaintiff Isaiah Cone moves to dismiss Plaintiff's representative PAGA claims against Defendant MJB Welding Supply, Inc., without prejudice. Plaintiff also moves to dismiss Plaintiff's individual PAGA claims against Defendant with prejudice. Plaintiff has received no consideration for the dismissal of the representative PAGA claims. Potential aggrieved employees have not been notified of this action. The Motion is **GRANTED**. The proposed order will be executed. All future dates, including today's 1:30 p.m. Mandatory Settlement Conference are **VACATED**. The clerk is directed to vacate all future dates and close the file. No appearances are necessary on today's calendar.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on May 12, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; and (5) the Complaint in Shasta County case 209540. The request is granted pursuant to Evid. Code §§ 452 and 453.

Defendant further requests the Court take judicial notice of the First Amended Complaint in Shasta County case 209540. The request is denied. The request was made on June 8, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiffs, who did not have the opportunity to oppose.